

		<u>Sanctions.</u> Sanctions are GRANTED in the amount of \$1,850 in favor of plaintiff and against defendant, payable within 30 days of notice. (See Code Civ. Proc., § 1987.2, subd. (a).) Most of the subpoenas were egregiously overbroad on their face and oppressive as issued, and defendant has largely opposed this motion without substantial justification. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431.) Plaintiff shall give notice.
7.	Boehner vs. Mercy House Living Centers 26-01543108	Motion - Other (Order to allow substituted service of summons and complaint) MOOT based on order granting substituted service March 26, 2026, ROA 65. In addition, Plaintiff filed a FAC on July 13, 2026, ROA 148.
8.	Smits vs. Mother Nature Trust 25-01482681	1. Motion for Leave to Amend 2. Case Management Conference Plaintiff Andrew Smits' Motion for Leave to File a Second Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); <i>Atkinson v. Elk Corp</i> (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Leave to amend is warranted as the proposed amended pleading states an alternative theory of liability. (See <i>Morgan v. Super. Ct.</i> (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion"]; <i>Kittredge Sports Co. v. Super. Ct.</i> (1989) 213 Cal.App.3d 1045, 1047 ["judicial policy favors resolution of all disputed matters in the same lawsuit"].) In opposition, Defendants challenges the legal sufficiency of the proposed amended complaint, arguing that Plaintiff's claims are barred by res judicata and the statute of limitations. The court is not going to entertain assertions regarding the legal sufficiency of Plaintiff's allegations in assessing a motion for leave to amend. Defendant can raise its challenges to the sufficiency of Plaintiff's claims in an appropriate proceeding. (See <i>Atkinson v. Elk Corp.</i> (2003)

		109 Cal.App.4th 739, 760 [“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”).] Plaintiff shall separately file and serve the proposed Second Amended Complaint within 30 days of this ruling. Separate filing of the proposed Second Amended Complaint is required to ensure it is properly indexed in the Court’s electronic filing system. The Case Management Conference is CONTINUED to Friday, October 16, 2026, at 9:30 a.m. in Department C12. (Demurrer scheduled that date). Plaintiff shall provide notice.
9.	Murphy vs. Fox 26-01542023	1. Demurrer to Complaint 2. Case Management Conference Defendant The Regents of the University of California, erroneously sued and served as University of California Irvine Medical Center, d/b/a UCI Health’s demurrer to plaintiff Loretta Murphy’s 2nd cause of action for institutional negligence is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) The 2nd cause of action states sufficient facts, regardless of its title. (<i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 38 [“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer”]; <i>Williams v. Beechnut Nutrition Corp.</i> (1986) 185 Cal.App.3d 135, 139, FN 1 [failure to properly label or title a cause of action is not determinative]; <i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917 [negligence elements]; <i>Hanson v. Grode</i> (1999) 76 Cal.App.4th 601, 606 [professional negligence elements]; <i>Leung v. Verdugo Hills Hospital</i> (2012) 55 Cal.4th 291, 310 [institutional negligence]; Complaint, ¶¶ 2, 6, 36 [duty], 16-21, 30, 37 [breach], 22-28 [proximately caused damages], 35 [incorporating prior allegations].) Moving defendant shall file an Answer to the Complaint within 30 days. The Case Management Conference is CONTINUED to November 19, 2026, at 9:30 a.m. in Department C12. Plaintiff shall give notice.